

## 25STCV28466 25STCV28466

County: los-angeles

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Case Number: 25STCV28466 Hearing Date: June 30, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: June 30, 2026

Case Name: Casillas v. Mohammadi, et al.

Case

No.: 25STCV28466

Matter: Demurrer

Moving

Party: Defendant Eusebio

Valles Sanchez

Responding Party: None

Tentative

Ruling: Defendant Eusebio Valles

Sanchez's demurrer is granted in part and denied in part.

Plaintiff

Martin Casillas ("Plaintiff") filed this action against Defendants Babak Mohammadi ("Mahammadi"), Las Lomas Investments, LLC ("Lomas"), Jose Talavera, Stucco Guys, Eusebio Valles Sanchez ("Sanchez"), and Does 1 through 20. The Complaint alleges four causes of action for: (1) negligence; (2) statutory employer

liability (Labor Code Sections 3706 and 2750.5); (3) premises liability; and (4) declaratory relief.

Sanchez, in pro per, demurs to Plaintiff's Complaint. Plaintiff did not file an opposition.

#### Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court " ' 'treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . ' " (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

#### Analysis

Meet and Confer

Pursuant to Code of Civil Procedure

section 430.41, "a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . ." (Code Civ. Proc. § 430.41, subd. (a).)

Sanchez did

not attach a declaration claiming that the parties met and conferred. Thus, the parties did not meet the statutory requirements. In the interest of judicial efficiency, the Court will address the merits of Sanchez's demurrer.

Demurrer

Uncertainty

Per Code of Civil Procedure section

430.10, subdivision (f), a demurrer must be sustained if a pleading is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) The term uncertain means “ambiguous and unintelligible.” (Ibid.) However, demurrers for uncertainty will not be sustained unless “the pleading is so incomprehensi[ve] that a defendant could not reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695 , quoting Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn.3 (A.J. Fistes Corp.).)

In looking

at the Complaint as a whole, it is not incomprehensible to sustain on demurrer. The Complaint alleges sufficient facts for Sanchez to respond.

Thus, the

Court overrules the demurrer on this basis.

Failure

to Allege Sufficient Facts

Sanchez

demurs to the entire Complaint for failure to allege sufficient facts. The Court notes that only the first and fourth causes of action are directed as to Sanchez.

Negligence

““The

elements of a cause of action for negligence are well established. They are ‘(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.’” (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.)

Sanchez

contends that the Complaint does not allege that he owed Plaintiff a duty. However,

the Court is not persuaded by Sanchez's argument. The Complaint alleges that Defendants Mahammadi and Lomas hired Sanchez, doing business as Stucco Guys. (Compl., ¶¶ 4, 9.) The Complaint also alleges that "Stucco Defendants" were unlicensed contractors and failed to carry workers' compensation insurance. (Id., ¶ 10.) Stucco Defendants hired Plaintiff, and on June 10, 2019, Plaintiff was injured while working. (Id. at ¶ 13.) Moreover, the Complaint alleges that Defendants owed Plaintiff a duty of care to provide a safe work environment and comply with California labor, safety, and licensing laws. Thus, the Complaint alleges sufficient allegations to constitute a cause of action.

Therefore,  
the Court overrules Sanchez's demurrer as to the first cause of action.

Declaratory  
Relief

“To  
qualify for declaratory relief, [a party] would have to demonstrate its action presented two essential elements: '(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [the party's] rights or obligations.'” (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909, as modified on denial of reh'g (Mar. 7, 2013).)

The  
Complaint does not contain any allegations regarding a subject of declaratory relief. While the Complaint alleges the fourth cause of action against all Defendants, it contains allegations only against Defendants Mahammadi and Lomas.

Thus, the  
Court sustains the demurrer as to the fourth cause of action.

Leave to Amend

Leave to amend must be allowed  
where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; Kong v. City of Hawaiian Gardens Redevelopment

Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that the pleading can be successfully amended. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Plaintiff did not file an opposition to show the Court how the pleading can be amended as to the fourth cause of action. Thus, leave to amend is not granted.

Conclusion

Defendant

Eusebio Valles Sanchez's demurrer as to the first cause of action is overruled.

Defendant

Eusebio Valles Sanchez's demurrer as to the fourth cause of action is sustained.

Plaintiff is

not granted leave to amend.